Superior Court of the State of California
County of Orange

DEPT C20 TENTATIVE RULINGS

Judge Theodore Howard

The court will hear oral argument on all matters at the time noticed for the hearing. If you would prefer to submit the matter on your papers without oral argument, please advise the clerk by calling (657) 622-5220. If no appearance is made by either party, the tentative ruling will be the final ruling. Rulings are normally posted on the Internet by 4:00 p.m. on the day before the hearing.

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Date: July 2, 2026

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1.	Brixen & Sons, Inc. v. Boss Industries Incorporated 25-1485177	Plaintiff Brixen & Sons, Inc.'s ("Plaintiff") unopposed motion for attorney fees against defendants Boss Industries Incorporated and Todd W. Gibb ("Defendants" together) is **GRANTED**. On April 23, 2026, the court entered judgment in favor of Plaintiff and against Defendants. (ROA 98.) The underlying lease contract and guaranty both contain attorney fees provisions awarding attorney fees

		to the prevailing party. (Cha Decl., Ex. A.) Pursuant to *Civ. Proc. Code §§ 1032(a)(4)* and *1033.5,* and *Civ. Code § 1717*, Plaintiff as the prevailing party may recover attorney fees and costs from Defendants. The court has reviewed the billing entries provided by Plaintiff and found some items that are excessive. Due to the lack of opposition and reply briefs on this motion, the court will deduct the anticipated $5,000. The court will also deduct $4,357.50 in additional fees it found excessive on a relatively simple summary judgment motion. The court hereby awards reasonable attorney fees of $57,540.50 to Plaintiff. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095.) The court awards Plaintiff the full $1,695.08 in requested costs as the prevailing party. (*Civ. Proc. Code § 1033.5; Ladas v. California State Auto. Assn.* (1993) 19 Cal. App. 4th 761, 774.) The combined total in attorney fees and costs that awarded in favor of Plaintiff and against Defendants is $59,235.58. *Plaintiff to give notice.*
2.	Gonzalez v. General Motors, LLC 24-1426822	Plaintiff Francisco Gonzalez's ("Plaintiff") Motion for Attorney Fees and Costs ("Motion") is **GRANTED**. Plaintiff is the prevailing party in this action after settling defendant General Motors, LLC (Defendant). Pursuant to *Civil Code section 1794,* subdivisions (d) and (e), as the prevailing party on a lemon law matter, Plaintiff is entitled to recover reasonable attorney fees. (*Serrano v. Priest* (1977) 20 Cal. 3d 25, 49; *Doppes v. Bentley Motors, Inc.* (2009) 174 Cal. App. 4th 967, 998.) Plaintiff's counsel requests $41,229.50 in attorney fees, plus a 0.15 multiple thereon for an additional $6,184.42 in fees, for a total of $47,413.92 in attorney fees. The court, having reviewed the billing entries provided by Plaintiff's counsel finds the hourly billing rates between $350/hr. and $695/hr. are within the reasonable range. The court finds the hours billed are excessive. The majority of the excessive hours are those entries with dates identified as "TBD" in the billing and are related to un-filed motions to strike/tax costs and oppositions/appearances related thereto. There are several other entries that had somewhat excessive billing which the court also reduced. Given how uncomplicated this matter was the reasonable attorney fees to be $33,067.50. (*PCLM Group, Inc. vs. Drexler* (2000) 22 Cal.4th 1084, 1094-96.) The request for a multiplier is denied as this was not a complicated matter and counsel reasonably spent on average approximately 3.1 hours per month on this case. The court does not find any additional factors would support the need for a multiplier. The request for costs totaling $2,317.71 is granted as Plaintiff filed a signed memorandum of costs. (*Nelson v. Anderson* (1999) 72 Cal. App. 4th 111, 131.) The burden to object to the costs would be on

		Defendant who was required to file a timely objection to said costs. Defendant failed to do. (*CA ST CIVIL RULES Rule 3.1700(b)(1)*.) As there are no timely objections, nor evidence of a written agreement to extend the objection time, the costs are awarded in full. The total sum of attorney fees and costs awarded to Plaintiff against Defendant is: $33,067.50 + $2,317.71 = $35,385.21. *Plaintiff to give notice.*
3.	Diamond PEO, LLC v. Accurate Connections, LLC 19-1082775	*(Withdrawn)*
4.	Cicale v. LoanDepot.com, LLC 26-1544409	Before the Court is the unopposed application of attorney Emily Craiger to appear in this matter pro hac vice as counsel for defendant LoanDepot.com, LLC. Ms. Craiger has complied with the requirements set forth in California Rules of Court, Rule 9.40. Accordingly, the application is **GRANTED**. *Counsel for LoanDepot.com, LLC is ordered to give notice of this ruling*.
5.	Awesome Aminos, Inc. v. Vitapur, LLC 26-1543762	The Motion to Quash Service of Summons filed on 4/20/26 by Defendant Vitapur, LLC ("Defendant") is **DENIED**. Plaintiff Awesome Aminos, Inc. ("Plaintiff") has met its initial burden to demonstrate facts justifying the exercise of personal jurisdiction here. (Rivelli v. Hemm (2021) 67 Cal.App.5th 380, 393.) Plaintiff has shown that it is and throughout the relevant period was effectively the successor of the contracting entity, Awesome Aminos, LLC ("AA NV LLC"). (ROA 13, Ex. B; ROA 26, Exs. A, B; Geis Decl. ¶¶ 1, 2, 5-7.) Plaintiff has also shown that both entities operated out of California throughout the parties' relationship. (Geis Decl., ¶¶ 2-7, 10.) Plaintiff has also shown that Defendant repeatedly shipped product samples to California for approval, that the officer it did business with was in California, and that it knew that Mr. Geis travelled from California for their in-person meetings. (Geis Decl., ¶¶ 1-7, 10.) Plaintiff has thus shown that Defendant's contacts with California, as to the contract at issue, were of a continuing nature, and that Defendant knew that the customer operated out of California. This action arises directly from those sales. The circumstances thus demonstrate that Defendant purposefully availed itself of this forum. The burden therefore shifts to Defendant to demonstrate that the exercise of jurisdiction here would be unreasonable. It has failed to do so. The Motion to Quash is therefore **DENIED**. Both sides' Requests for Judicial Notice are **GRANTED** under *Ev. Code §452(c)*, as to the existence of the records. *Plaintiff is to give notice of this ruling.*
6.	Wilmington Savings Fund Society, FSB v. Mitchell 25-1498917	The motion of Wilmington Savings Fund Society, FSB, not in its individual capacity but solely as Owner Trustee for the FLIC Residential

		Mortgage Loan Trust 1 (Plaintiff) for leave to file a first amended complaint is **GRANTED**. (*Code Civ. Proc., § 473(a)(1)*.) On June 11, 2026, this motion came on for hearing and was continued to July 2, 2026, because although Defendant apparently served an opposition on Plaintiff, the opposition was not filed with the Court. The Court ordered Defendant to file the opposition within 7 days. Notice of the Court's order was duly served on Defendant. (See ROA 64.) No opposition was timely filed with the Court. Courts are bound to apply a policy of great liberality in permitting amendments to the complaint "at any stage of the proceedings, up to and including trial," absent prejudice to the adverse party. (*Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 761.) Plaintiff has shown the interests of justice would be served by allowing the amendment as Plaintiff merely seeks to add an alternative cause of action arising from the same set of facts and circumstances pled in the original complaint. There appears to be no prejudice that would result from the amendment as trial is not set to commence until February 2027. Accordingly, the motion is **GRANTED**. *The First Amended Complaint is to be separately filed within 7 days of the date of this order.*
7.	Maixner v. Julie G. Duquette, M.D., A Medical Corporation 25-1493273	Plaintiff Susan Maixner's ("Plaintiff") unopposed Motion for Terminating and Monetary Sanctions ("Motion") against defendants Julie G. Duquette, M.D., and Julie G. Duquette, M.D. ("Defendants" together) is **GRANTED**. The court previously ordered Defendants to serve initial responses to sets one of form interrogatories and requests for production on 04/08/26; monetary sanctions were also issued. (ROA 70.) Despite multiple attempts by Plaintiff's counsel to obtain responses from Defendants, nothing has been served since the discovery requests were initially propounded and Defendants and their counsel have apparently refused to communicate with Plaintiff. This is in addition to Defendants refusing to comply with two prior court orders to participate in preparing a joint letter brief regarding the issues related to the discovery requests. (ROA 55, 64.) Defendants' prior refusal to participate and appear resulted in an Order to Show Cause re: Monetary Sanctions Against Defense Counsel for Failure to Comply with Court Order (ROA 64, 70), which Defendants did not appear at, and which resulted in additional monetary sanctions against defense counsel. Defendants have not made any appearance in this action since 12/05/25 and have apparently refused to communicate with Plaintiff regarding issues in this lawsuit. The court finds Defendant has abused the discovery process by failing to respond to authorized methods of discovery and by disobeying direct court orders. (*Civ. Proc. Code §§ 2023.010* and *2023.030*.)

		Although discovery sanctions are typically meted out sparingly or in an incremental approach (*Dep't of Forestry & Fire Prot. v. Howell* (2017) 18 Cal. App. 5th 154, 191-92), the court has considered the totality of the circumstances in this instance and finds the actions of Defendants and their counsel are willful, to the detriment of Plaintiff, and that multiple informal attempts to resolve the issues were not successful due to Defendants' refusal to respond or participate. (*Los Defensores, Inc. v. Gomez* (2014) 223 Cal. App. 4th 377, 390.) In addition to the above, as prior monetary sanctions and the responses to requests for admission being deemed as admitted did not dissuade Defendants from additional discovery abuses, the court finds the request for terminating sanctions to be appropriate here. Plaintiff's request the court strike Defendant's answer is **GRANTED**. Plaintiff's request for additional monetary sanctions against both Defendants and their counsel of record is also granted in the reduced and reasonable amount of $2,077.40 ($500/hr. x 4 hrs. + $60 fee + $17.40 mileage) as the motion itself was not particularly complicated. Monetary sanctions are due within 15 days of written notice of the ruling. **The court orders that Defendant's answer is hereby struck.** Plaintiff's counsel is ordered to give notice of the ruling, and to prepare a request for entry of default which the court will sign upon receipt. *Plaintiff's counsel to give notice.*
8.	Tapia v. The Regents of the University of California 24-1446222	Before the Court is the continued hearing on the Motion for Reconsideration and Relief from Terminating Sanctions, etc., filed on 3/17/26 by Plaintiff Melissa Tapia in her individual capacity and in her capacity as decedent Luis Recinos' successor-in-interest ("Plaintiff"). The Motion is effectively a motion for relief under *C.C.P. § 473(b)*, based upon an attorney declaration of fault regarding discovery violations that resulted in terminating sanctions. In that context, the application for mandatory relief would be in proper form if it demonstrated that verified discovery responses had been served, for all of the outstanding discovery. (See *Rodriguez v. Brill* (2015) 234 Cal.App.4th 715, 729.) Plaintiff's counsel asserted in the Motion only that compliance was anticipated. (ROA 225, Smith Decl., ¶ 19.) Although it appears that Plaintiff then belatedly submitted some responses, her counsel failed to file any reply or declaration demonstrating that this had occurred. Both sides failed to inform the Court that any responses had belatedly been provided. In light of claims made by Plaintiff's counsel at the prior hearing, the Motion was continued to 7/2/26. Counsel for both sides were directed to file a Joint Statement by 6/26/26, along with any "individual declarations." The "Joint Statement" filed on 6/26/26 addresses what Defendant Regents of the University of California perceives to be

		defects in those responses, while Plaintiff's counsel asserts that the responses overall reflect substantial compliance. But the only copies of the belated responses which have been presented to the Court, as attached to the Leaf Decl. at Exs. 1-6, show only *unverified* responses, which do not demonstrate substantial compliance. The Motion is therefore **DENIED**. *Counsel for Defendant Regents of the University of California is to give notice of this ruling*.
9.	Tran v. Coshow 25-1530606	*(Moot)*
10.	Soteropoulos v. FCA US LLC 24-1492568	*(Withdrawn)*
11.	Druckrey v. Mercury Insurance Company 25-1494934	Before the Court is a demurrer and motion to strike filed by defendant California Automobile Insurance Company, erroneously sued as Mercury Insurance Company (Defendant) directed to the second amended complaint (SAC) of plaintiffs Craig Druckrey and Christine Druckrey (collectively, Plaintiffs). The demurrer is **OVERRULED.** The motion to strike is **GRANTED** WITH 20 DAYS LEAVE TO AMEND. **Motion 1: Demurrer** A breach of the implied covenant of good faith and fair dealing involves something beyond breach of the contractual duty itself. (*Careau & Co. v. Security Pacific Business Credit, Inc.* (1990) 222 Cal.App.3d 1371, 1394.) "[A]llegations which assert such a claim must show that the conduct of the defendant, whether or not it also constitutes a breach of a consensual contract term, demonstrates a failure or refusal to discharge contractual responsibilities, prompted not by an honest mistake, bad judgment or negligence but rather by a conscious and deliberate act, which unfairly frustrates the agreed common purposes and disappoints the reasonable expectations of the other party thereby depriving that party of the benefits of the agreement." (*Id*. at 1395.) Plaintiffs have adequately pleaded a claim for breach of the covenant of good faith and fair dealing. The SAC alleges Defendant confirmed coverage for the loss, but initial payments were "limited and facially insufficient" to repair the extensive damage to the Subject Property. (SAC ¶ 16.) The SAC alleges Defendant's own consultant informed Plaintiffs they could not complete repairs for the amount paid by Defendant and only after Plaintiffs retained a public adjusting company to assist them did Defendant concede the initial estimates were inaccurate. (See SAC ¶¶ 18-19.) While Plaintiffs allege Defendant issued supplemental payments, they also allege "after the supplemental payment on November 15, 2023, Defendant's pattern of undervaluing the loss and delays in payment continued." (SAC ¶ 20.) The SAC shows the delays and underpayments continued for two years, and that Defendant failed to issue a promised supplemental payment of $77,098.46. (See SAC ¶¶ 21-30.)

		The Court finds the SAC's allegations sufficient at the pleading stage. "[W]hen benefits are due an insured, delayed payment based on inadequate or tardy investigations, oppressive conduct by claims adjusters seeking to reduce the amounts legitimately payable and numerous other tactics may breach the implied covenant because it frustrates the insured's primary right to receive the benefits of his contract—i.e., prompt compensation for losses." (*Love v. Fire Ins. Exch.* (1990) 221 Cal.App.3d 1136, 1153 (emphasis in original). The demurrer to the second cause of action is **OVERRULED**. **Motion 2: Motion to Strike** Pursuant to *Code of Civil Procedure section 436*, the court may "strike out any irrelevant, false or improper matter inserted in any pleading" and "strike out all or any part of any pleading not drawn or filed in conformity with the laws of the state, a court rule, or an order of the court." The allegations appear insufficient to the Court to support entitlement to punitive damages. The allegations that Defendant undervalued the loss and wrongfully withheld benefits without proper investigation are insufficient to demonstrate that Defendant intended to cause injury to Plaintiffs or that Defendant engaged in despicable conduct. (See *Civ. Code, § 3294(a), (c); Pac. Gas & Elec. Co. v. Superior Court* (2018) 24 Cal.App.5th 1150, 1159.) The SAC also fails to plead facts showing that an officer, director, or managing agent of Defendant knew or ratified the alleged wrongful conduct. (*Civ. Code, § 3294(b)*.) Based on the foregoing, the motion to strike is **GRANTED** WITH 20 DAYS LEAVE TO AMEND. *Counsel for Defendant shall give notice.*
12**.**	Casco v. Bank of America, N.A. 23-1335287	Before the Court is a Motion for Judgment on the Pleadings by Bank America N.A. (BANA) as to the entire complaint filed by plaintiff Franklin Casco, Jr. For the reasons set forth herein, the motion is DENIED. <u>Request for Judicial Notice</u> BANA requests the Court take judicial notice of four recorded documents. (ROA 74) The Court will take judicial notice of the facts and propositions within the four recorded documents. (*Evid. Code §452(h)*.) <u>Motion for Judgment on the Pleadings</u> A motion for judgment on the pleadings may be made, and granted, on the same grounds as a general demurrer. (*Stoops v. Abbassi* (2002) 100 Cal.App.4th 644, 650; *Code Civ. Proc., §438(c)(1)(B)(ii)*.) As with a demurrer, the grounds for judgment on the pleadings must appear on the face of the complaint or be based on facts that the court may judicially notice. (*Code Civ. Proc., §438(d)*; see, *Burnett v. Chimney Sweep* (2004) 123 Cal.App.4th 1057, 1063 [subject to certain

			exceptions, extrinsic evidence should not be considered in a motion for judgment on the pleadings].) Here, BANA seeks judgment on the pleadings as to the entire complaint pursuant to *Code of Civil Procedure §438(c)(1)(B)(ii)* and *(d)* (Notice of Motion at 2:4-8) In the first cause of action, plaintiff alleges a violation of *Civil Code § 2923.6(c)* states: "If a borrower submits a complete application for a first lien loan modification offered by, or through, the borrower's mortgage servicer at least five business days before a scheduled foreclosure sale, a mortgage servicer, mortgagee, trustee, beneficiary, or authorized agent shall not record a notice of default or notice of sale, or conduct a trustee's sale, while the complete first lien loan modification application is pending. A mortgage servicer, mortgagee, trustee, beneficiary, or authorized agent shall not record a notice of default or notice of sale or conduct a trustee's sale until any of the following occurs: (1) The mortgage servicer makes a written determination that the borrower is not eligible for a first lien loan modification, and any appeal period pursuant to subdivision (d) has expired. (2) The borrower does not accept an offered first lien loan modification within 14 days of the offer. (3) The borrower accepts a written first lien loan modification, but defaults on, or otherwise breaches the borrower's obligations under, the first lien loan modification." In paragraphs 33-35, plaintiff alleges he submitted the loan modification package provided by BANA, did not get a response to the application, and then BANA recorded a Notice of Trustee's sale. Plaintiff then alleges that because BANA intended to go forward with the sale, he was forced to file a bankruptcy at the last minute. (Complaint ¶46) The complaint was filed on 7/10/23, at which time the Trustee's Sale was scheduled for August 7, 2023." (Complaint ¶52) In opposition, BANA argues the sale did not go forward and that therefore the violation was not material. That is not pled in the complaint. While BANA asserts the copy of the 2012 Grant Deed shows plaintiff's "continued ownership of the Property," (See RJN at 2:19) the Grant Deed does not establish there is no material violation alleged in the complaint. As currently pled and based only on the complaint and evidence attached to the Request for Judicial notice, the Court finds the 1st cause of action is sufficiently pled. As the complaint is sufficiently pled a cause of action against BANA, the motion is **DENIED**. (*Quelimane Co., Inc. v. Stewart Title Guar. Co.* (1998) 19 Cal.4th 26, 38-39 - A complaint is good against a general demurrer so long as the essential facts of some valid cause of action are alleged.) *Plaintiff is ordered to give notice.*

13.	Bush v. California Cemetery and Funeral Services, LLC 24-1438792	Before the Court is a motion for summary judgment or in the alternative, summary adjudication filed by defendant California Cemetery and Funeral Services, LLC (Defendant) on the Complaint of plaintiff Kesaia Bush (Plaintiff). For the reasons set forth below the motion for summary judgment is **GRANTED**. The new evidence submitted with the reply is untimely and not considered. (*Code of Civ. Proc. § 437c, subd. (b)(4)*.) Defendant's request for judicial notice is **GRANTED.** (*Evid. Code § 452, subd. (d)*.) Plaintiff's evidentiary objections are **OVERRULED.** Defendant's evidentiary objections to the declaration of Sandy T. Luu and Kesaia Bush are **SUSTAINED** as to nos. 1, 2, 38-43 based on relevance and **OVERRULED** as to nos. 3-42. The Court declines to rule on Defendant's other "evidentiary" objections, which are procedurally improper. Written objections must go to specific evidence, not facts stated in the separate statement or response to separate statement. (*Cal. Rules of Court, rule 3.1354(b)*.) <u>1st and 2nd causes of action (discrimination and retaliation):</u> For summary judgment purposes, "[i]n an employment discrimination case, the employer, as the moving party, has the initial burden to present admissible evidence showing either that one or more elements of plaintiff's prima facie case is lacking or that the adverse employment action was based upon legitimate, nondiscriminatory factors." (*Hicks v. KNTV Television, Inc.* (2008) 160 Cal.App.4th 994, 1003; *Cornell v. Berkeley Tennis Club* (2017) 18 Cal.App.5th 908, 926.) "If the employer meets its initial burden in this manner, the plaintiff then has the burden to produce 'substantial evidence that the employer's stated nondiscriminatory reason for the adverse action was untrue or pretextual, or evidence the employer acted with a discriminatory animus, or a combination of the two, such that a reasonable trier of fact could conclude the employer engaged in intentional discrimination.'" (*Hicks v. KNTV Television, Inc., supra*, 160 Cal.App.4th at 1003; see also *Deschene v. Pinole Point Steel Co.* (1999) 76 Cal.App.4th 33, 44 [the plaintiff must provide "specific, substantial evidence of pretext"].) Here, Defendant produced evidence that Plaintiff's employment was terminated because Plaintiff was on an extended absence without approved leave, *i.e.*, Plaintiff failed to submit medical documentation to support her request for pregnancy disability leave as required under Defendant's policies. (Defendant's Separate Statement of Undisputed Material Facts ("DSS") 4-19, 26.) Defendant met its burden showing a legitimate, nondiscriminatory reason for Plaintiff's termination.

The burden shifted to Plaintiff, but Plaintiff failed to produce sufficient evidence that Defendant's stated reason for termination was pretextual or Defendant otherwise acted with discriminatory animus.

Plaintiff's argues pretext is shown by Defendant's violation of 12 of its own policies. It is true "an employer's failure to follow its own policies and procedures" supports an inference of pretext. (*Moore v. Regents of University of California* (2016) 248 Cal.App.4th 216, 239.) Here, however, the evidence produced by Plaintiff fails to show Defendant violated its policies. Rather, the undisputed evidence and a review of the policies cited by Plaintiff show there was no obligation imposed on Defendant, or the obligation was not triggered and/or excused by Plaintiff's own noncompliance. (Plaintiff's Additional Material Facts ("AMF") 67-78; see also DSS and Response to DSS 7-11, 22, 26; Declaration of Jeffrey J. Gordon ("Gordon Decl."), Ex. 3 at p. 391.)

Plaintiff next argues that Defendant's paperwork contains inconsistencies regarding Plaintiff's employment status during her leave of absence. A triable issue as to the employers' credibility may arise where the employer has given "fundamentally different justifications" for its action. (*Reeves v. MV Transp., Inc.* (2010) 186 Cal.App.4th 666, 677.) The evidence produced by Plaintiff fails to show the inconsistencies constitute "fundamentally different justifications" for the termination. Rather, they only reflect minor miscommunication between Defendant and third-party administrator and/or immaterial differences in wording. (Plaintiff's AMF 54-55, 81-82.)

Plaintiff argues a male employee was treated differently and more favorably because he was offered reinstatement. Pretext may be proven through "comparative evidence," *i.e.*, evidence that the employer treated similarly situated person in similar circumstances more favorably than it treated plaintiff. (*McDonnell Douglas Corp. v. Green* (1973) 411 U.S. 792, 804.) The undisputed evidence shows, however, that Plaintiff was provided the same offer as the male colleague – reinstatement with the requested documentation. (Gordon Decl., Ex. 2 at pp. 181-182; see also Bush Decl., ¶ 36.) Plaintiff failed to produce any evidence she ever provided medical document to support her leave, either before or after termination, or that she ever sought reinstatement. (DSS 10-23; Response to DSS 10; see also Gordon Decl., Ex. 2 at pp. 181-182, 200.) Plaintiff failed to show she was treated differently.

In sum, Plaintiff failed to meet her burden to provide "specific, substantial evidence of pretext" from which a reasonable trier of fact could conclude that the explanation offered by Defendant for Plaintiff's termination was not credible. (*Deschene v. Pinole Point Steel Co., supra*, 76 Cal.App.4th at 44.) The motion is therefore **GRANTED** as these causes of action.

4th and 5th causes of action (reasonable accommodation and interactive process):

The FEHA imposes on the employer the obligation "to make reasonable accommodation for the known physical or mental disability" of an employee to enable him or her to perform a position's essential functions, unless doing so would produce undue hardship to the employer's operations. (*Gov. Code § 12940, subd. (m); Cal. Code Regs., tit. 2, § 11068(a); Fisher v. Sup. Ct. (Alpha Therapeutic Corp.)*(1986) 177 Cal.App.3d 779, 783.) In addition, FEHA requires the employer to engage in a "timely, good faith interactive process with the employee . . to determine effective reasonable accommodations, if any, in response to response to a request for reasonable accommodation by an employee . . . with a known physical or mental disability of known medical condition." (*Gov. C. § 12940, subd. (n)*.)

FEHA regulations provide that the employer has the obligation to initiate the interactive process 1) if an employee with a known disability or medical condition requests reasonable accommodation or 2) the employer otherwise becomes aware of the need for an accommodation through a third party or by observation. (*Cal. Code Regs., tit. 2, § 11069, subd. (b)*.) A request for finite leave is a request for accommodation. (*Nealy v. City of Santa Monica* (2015) 234 Cal.App.4th 359, 377-378; *Cal. Code Regs., tit. 2, § 11068, subd. (c)*.)

The employee has the obligation to "cooperate in good faith with the employer . . . including providing reasonable medical documentation where the disability or the need for accommodation is not obvious and is requested by the employer." (*Cal. Code Regs., tit. 2, § 11069, subd. (d)(5)*.) "Reasonable medical documentation confirms the existence of the disability and the need for reasonable accommodation." (*Cal. Code Regs., tit. 2, § 11069, subd. (d)(1)*.) If the medical documentation is insufficient, no reasonable accommodation is required. (*Cal. Code Regs., tit. 2, § 11069, subd. (d)(6).*)

Defendant produced evidence Plaintiff requested accommodation for an alleged pregnancy disability by requesting a leave of absence, Defendant requested medical certification to support the leave request, but Plaintiff failed to provide any medical documentation despite repeated requests. (DSS 10-21.) Based on Plaintiff's failure to cooperate, Defendant met its burden that it had no further obligation to engage in the interactive process or provide reasonable accommodation.

The burden shifts to Plaintiff to produce evidence showing a triable issue of fact. Plaintiff argues she was physically unable to engage in the interactive process, which cannot be held against her pursuant to *Cal. Code Regs., tit. 2, § 11069, subd. (d)(3)*. (AMF 49.) The evidence does not show, however, that Plaintiff lacked the mental or physical ability to obtain the doctor's note. Indeed, Plaintiff claims she was unable to obtain the medical certification because her doctor refused to provide it despite Plaintiff's repeated requests at her OB appointments. (Response to DSS 10, 12; Plaintiff's AMF 44; see also Bush Decl. ¶ 21.) Thus, Plaintiff's inability to obtain the doctor's note was not caused by Plaintiff being physically unable to do so – it was because her doctor did not find her morning sickness to be severe enough to warrant accommodation.

Plaintiff next argues that Defendant had "at least five concrete mechanisms to resolve the certification obstacle" based on its own policies and Defendant "used none." (Opposition, p. 14.) These arguments fail for the same reasons set forth above: Plaintiff failed to show Defendant violated any of its policies.

To the extent Plaintiff argues her physical disability was so "obvious" that no documentation was necessary, Plaintiff failed to submit sufficient evidence of an obvious physical disability or the need to take an extended leave of absence. Plaintiff produced evidence her coworkers and supervisor may have observed Plaintiff suffer from morning sickness, but only a healthcare provider can determine whether she suffered from "severe morning sickness" requiring two months' leave. (AMF 24-27; see also Plaintiff's Compendium of Evidence, Ex. 2.) Notably, her own doctor did not believe her morning sickness was severe enough to warrant medical certification. (Response to DSS 10, 12; Plaintiff's AMF 44; see also Bush Decl. ¶ 21.) If her own doctor did not find her condition to be "obvious" enough for an extended leave of absence, it would be unreasonable to expect her medically untrained coworkers and supervisors to find her condition "obvious" so as to excuse Plaintiff from a providing a doctor's note.

Plaintiff failed to meet her burden showing a triable issue of fact as to Defendant's obligation to provide reasonable accommodation and/or further engage in the interactive process. The motion is therefore GRANTED as these causes of action.

<u>3rd and 6th causes of action (failure to prevent and wrongful termination):</u>

These claims are derivative of Plaintiff's other disability discrimination claims and fail for the same reasons. (*Trujillo v North County Transit* (1998) 63 Cal.App.4th 286-88 [in general, there can be no failure to prevent discrimination if there are no successful discrimination claims; *City of Moorpark v. Sup. Ct. (Dillon)* (1998) 18 Cal.4th 1143, 1161[FEHA disability discrimination may form the basis of a common law claim for wrongful termination against public policy].) The motion is therefore **GRANTED** as these causes of action.

		Punitive damages: Based on the Court's ruling on the motion as to all of Plaintiff's claims, Defendant's argument as to punitive damages is moot. *Counsel for Defendant shall give notice of this ruling.*
14.	Widly v. JCP LP 21-1232447	*(Status and CMC only)*
15.	Widly v. Tucker Realty 20-1133955	*(Status and CMC-only)*
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